

**CHAPTER xlii.**

An Act to confer further powers upon the Enfield Gas Company. A.D. 1911
[29th June 1911.]

WHEREAS by the Enfield Gas Act 1867 (herein-after called "the Act of 1867") the Enfield Gas Company (herein-after called "the Company") were incorporated and authorised to supply gas within parts of the parishes of Enfield and Edmonton in the county of Middlesex:

And whereas by the Enfield Gas Order 1879 (herein-after called "the Order of 1879") the Enfield Gas Order 1883 (herein-after called "the Order of 1883") and the Enfield Gas Act 1898 (herein-after called "the Act of 1898") further powers were conferred upon the Company and by the Act of 1898 the limits of the Company for the supply of gas were extended and defined and as so extended and defined included the portions of the parishes of Enfield Edmonton and Southgate in the county of Middlesex described in the First Schedule to that Act:

And whereas by the Act of 1898 provision was made for the conversion of the existing ordinary and preference capital of the Company into consolidated ordinary and preference stock entitled to dividends at the rate of five per centum per annum for the exercise of the unexercised capital powers of the Company by the issue of similar stocks and for the raising of additional capital to the amount of fifty thousand pounds by the creation and issue of further ordinary or preference stock entitled to similar dividends:

And whereas the following is a statement of the capital of the Company authorised by the said Acts and Orders and of the amounts of such capital which have been issued:—

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Acts or Orders authorising Capital.	Amount authorised.	Description of Capital issued.	Amount issued on which Dividend is payable.	Premium Capital received.	Remaining to be issued including Premiums.
The Act of 1867 and the Orders of 1879 and 1883 as amended by the Act of 1898 - -	£ 129,405	Consolidated ordinary stock.	£ 93,915	£ 9,165	£ None.
		Consolidated preference stock.	26,325	None	None.
The Act of 1898	50,000	Consolidated ordinary stock.	43,365	3,834 9 1	2,800 10 11

And the following is a statement of the loan capital of the Company authorised by the said Acts and Orders and of the amounts of such capital which have been borrowed by them:—

Act or Order authorising borrowing.	Amount authorised to be borrowed.	Amount borrowed.	Rate per Cent. Interest.
The Act of 1867 - - - - -	£ 5,500	£ 5,500	4
The Order of 1879 - - - - -	6,000	{ 5,500 500	5
The Order of 1883 - - - - -	12,500		4
The Act of 1898 - - - - -	12,500	6,500	4

And whereas the whole of the amount which has been borrowed by the Company as aforesaid has been raised by the creation and issue of irredeemable debenture stock and it is expedient that the Company should be empowered to purchase or redeem the five per cent. debenture stock created and issued under the Order of 1879 by agreement with the holders of such debenture stock and to substitute new debenture stock therefor in order to provide for the various issues of debenture stock of the Company bearing an uniform rate of interest:

And whereas it is expedient that the Company be authorised to raise additional capital and that the further powers contained in this Act be conferred upon them:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

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1. This Act may be cited as the Enfield Gas Act 1911.

Short title.

2. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of the Act of 1867 the Order of 1879 the Order of 1883 the Act of 1898 and this Act) are hereby incorporated with this Act namely:—

Incorporation of general Acts.

The Lands Clauses Acts (except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking and with respect to the sale of superfluous lands):

The Gasworks Clauses Act 1847 (except sections 31 to 34) and the Gasworks Clauses Act 1871 Provided that section 13 of the former Act shall be read as if the words "or any premises" were inserted after the words "private building" and as if the words "Provided also that every such contract entered into by the Company shall be alike in terms and amount under like circumstances to all consumers" were added at the end of that section Provided further that section 35 of the Gasworks Clauses Act 1847 shall in and for the purposes of this Act and of its application to the Company be read and construed as if the words from "in case the whole" down to the words "have been paid" were omitted therefrom and as though the expression "the prescribed rate" included the standard rate of dividend or such rate as reduced or increased in accordance with the provisions of the Act of 1898:

The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (that is to say):—

The distribution of the capital of the Company into shares;

The transfer or transmission of shares;

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The payment of subscriptions and the means of enforcing the payment of calls;

The forfeiture of shares for non-payment of calls;

The remedies of creditors of the Company against the shareholders;

The borrowing of money by the Company on mortgage or bond;

The consolidation of the shares into stock;

The general meetings of the Company and the exercise of the right of voting by the shareholders;

The making of dividends;

The giving of notices; and

The provision to be made for affording access to the special Act by all parties interested:

And Part I. (relating to cancellation and surrender of shares)

Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts.

Interpretation.

3. In this Act—

The several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction;

The expression “the recited Acts” means and includes the Act of 1867 the Order of 1879 the Order of 1883 and the Act of 1898;

The expression “the undertaking” means the undertaking of the Company under the recited Acts and this Act;

The expression “the limits of supply” means the limits within which the Company are authorised to supply gas as defined by the Act of 1898.

Additional lands.

4.—(1) The Company may for the purpose of extending their gasworks purchase or take on lease (by agreement but not otherwise) and may hold the lands described in the First Schedule to this Act and the purchase of so much of the said lands as may have been purchased by the Company at the date of the passing of this Act is hereby confirmed.

(2) The Company may in addition to the lands described in the First Schedule to this Act and to any lands which they are authorised by the recited Acts to purchase take on lease or hold purchase or take on lease (by agreement but not otherwise) and may hold for the general purposes of the undertaking any lands and hereditaments which they may require Provided that they shall not at any time hold for such purposes more than twenty acres of land inclusive of the lands which they may have acquired and then hold under the powers of the recited Acts but excluding the lands described in the recited Acts or this Act on which they are authorised to maintain or construct gasworks and manufacture gas and that they shall not create or permit a nuisance on any lands acquired under the provisions of this subsection.

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(3) No lands acquired by the Company under the powers of this section shall be used by the Company for the purpose of manufacturing gas or residual products except the lands described in the First Schedule to this Act.

5. The Company may upon the lands described in the First Schedule to this Act if and when the same shall have been acquired or leased by them erect construct lay down provide maintain alter improve enlarge extend and renew or discontinue additional or other gasworks and works for the manufacture and storage of gas and for the manufacture conversion utilisation storage and distribution of materials used in or residual products resulting from such manufacture and the Company may also from time to time provide lay down maintain alter improve enlarge extend and renew all necessary retorts gasholders receivers drains sewers mains pipes machinery and other works and apparatus and conveniences and do all such acts as they may think proper for making and storing gas and for supplying gas under the recited Acts and this Act and may make store and supply gas accordingly and manufacture sell provide supply and deal in lime coke chemicals tar pitch asphaltum ammoniacal liquor and all other products or residuum of any materials employed in or resulting from the manufacture of gas.

Power to construct gasworks.

6. The Company may from time to time raise additional capital not exceeding in the whole one hundred thousand pounds by the creation and issue of further amounts of consolidated ordinary stock or consolidated preference stock or wholly or partially by either of those modes Provided that it shall not be

Power to Company to raise additional capital.

A.D. 1911. lawful for the Company to create and issue under the powers of this Act any greater nominal amount of capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of one hundred thousand pounds.

Privileges
&c. of
holders of
additional
capital.

7. The additional capital from time to time raised by the Company under this Act shall form part of the consolidated ordinary stock or consolidated preference stock as the case may be of the Company and save as otherwise provided in respect of such capital by this Act the holders of such stock in such additional capital shall be entitled to the like rights of voting and other rights qualifications and privileges including the right to dividends in proportion to the amount of their stock from time to time paid up and be subject to the like provisions forfeitures and liabilities as the holders of consolidated ordinary stock or consolidated preference stock as the case may be in the present capital of the Company Provided that except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any consolidated preference stock in such additional capital.

Shares or
stock to be
sold by
auction or
tender.

8.—(1) All stock created under the powers of this Act and all stock or shares which the Company may after the passing of this Act create or issue under the powers of the Act of 1898 shall subject to the provisions of the section of this Act the marginal note whereof is "Power to issue stock under copartnership rules" be issued in accordance with the provisions of this section.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine Provided as follows:—

(A) Notice of the intended sale shall be given in writing to the clerk to each urban district council having jurisdiction within the limits of supply and to the Secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply:

(B) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be

received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be :

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- (c) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds :
- (d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid :
- (e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of ordinary and preference shares or stock of the Company in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Company and to the consumers of gas supplied by the Company in such proportions as the Company may think fit or to one or more of these classes of persons only Provided in the case of an offer to holders of shares or stock that if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any shares or stock which have been offered for sale in accordance with subsection (2) or with subsections (2) and (3) and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Board of Trade stating the total amount of the respective shares or stock

A.D. 1911. sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the respective shares or stock.

(6) Sections 24 25 26 and 27 of the Act of 1898 are hereby repealed.

Power to
issue stock
under co-
partnership
rules.

9. Notwithstanding the provisions of the section of this Act of which the marginal note is "Shares or stock to be sold by auction or tender" the Company may if and whenever required by the trustees appointed under the copartnership rules of the Company so to do issue to any person in the employ of the Company such amount of consolidated ordinary stock as the trustees may specify without first offering such stock for sale by public auction or tender Provided that any consolidated ordinary stock issued under the provisions of this section shall be issued at the average price at which according to the Company's books sales of consolidated ordinary stock were effected within the period of six months immediately preceding the issue after making due allowance for any enhancement in price by reason of any accrued dividend Such average price to be ascertained by the said trustees.

Power to
borrow.

10.—(1) The Company may in respect of the consolidated ordinary stock and consolidated preference stock created and issued under the Act of 1898 and representing the capital authorised by the Act of 1867 the Order of 1879 and the Order of 1883 borrow on mortgage of the undertaking any sum or sums not exceeding in the whole (together with the sums already borrowed under the Act of 1867 the Order of 1879 and the Order of 1883) one-third part of the total nominal amount of the consolidated ordinary stock and consolidated preference stock so created and issued.

(2) The Company may also in addition to the sums which they are authorised to borrow by the Act of 1898 but subject to the provisions of this Act borrow on mortgage of the undertaking any sum or sums not exceeding in the whole (together with the sums authorised to be borrowed by the Act of 1898) one-third part of the amount of the capital of the Company by the Act of 1898 and this Act authorised to be raised which at the time of borrowing has been raised by the Company but no sum shall be borrowed in respect of any capital so raised until the Company have proved to a justice of the peace before he gives his certificate under the fortieth section of the Companies

Clauses Consolidation Act 1845 that the whole of the stock or shares at the time issued together with the premium (if any) realised on the sale thereof have been fully paid up. A.D. 1911. —

11. The provisions of the Companies Clauses Consolidation Act 1845 with respect to the conversion of the borrowed money into capital shall cease to apply to the Company. Borrowed money not to be converted into capital.

12. Section 30 of the Act of 1898 (Appointment of receiver) is hereby repealed but without prejudice to any appointment heretofore made or to any proceedings pending at the passing of this Act and in lieu thereof the mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver and in order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than two thousand pounds in the whole. Appointment of receiver.

13. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 and section 13 of the Order of 1883 and notice of the effect of the said section 13 shall be endorsed on all mortgages and certificates of debenture stock issued after the passing of this Act. Debenture stock.

14. All money raised or to be raised by the Company on mortgage or by the issue of debenture stock under the powers of the recited Acts or this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company in pursuance of any Act relating to the Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock. Priority of mortgages and debenture stock over other debts.

15. All mortgages granted by the Company in pursuance of the powers of any of the recited Acts and subsisting at the passing of this Act shall during the continuance of such mortgages and subject to the provisions of the Acts or Orders under Existing mortgages to have priority.

A.D. 1911. which such mortgages were respectively granted have priority over any mortgages granted by virtue of this Act but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company.

Application
of money.

16. All moneys raised under this Act including premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of shares or stock under the provisions of this Act shall not be considered as part of the capital of the Company entitled to dividend.

Power to re-
deem five per
cent. debenture
stock.

17.—(1) The Company may by agreement with the holder of any portion of the five per cent. debenture stock created and issued by the Company under the powers of the Order of 1879 at any time substitute for the five per cent. debenture stock so held by him any mortgage or debenture stock to be issued under the powers of this Act or the Act of 1898 or may pay off the amount secured by such five per cent. debenture stock with moneys to be raised under the powers of this Act or the Act of 1898 and the holder of any such five per cent. debenture stock whether or not he is a trustee or under any disability may agree with the Company for the substitution or payment off of his five per cent. debenture stock by means of any mortgage or debenture stock so to be issued or moneys so to be raised or partly by one method and partly by the other And the Company may make such reasonable payment as they may think fit to the holder of any such five per cent. debenture stock for his consent or for otherwise compensating him for the substitution or the payment off of his five per cent. debenture stock and any such payment may be either by money or by mortgage or debenture stock of the Company or partly by one method and partly by the other.

(2) To the extent of the nominal amount of any such five per cent. debenture stock so exchanged or paid off by the Company the powers of the Company of borrowing money under this Act shall be deemed to be increased and the Company may accordingly create and issue but so as not to increase the aggregate amount of the authorised loan capital of the Company debenture stock under this Act to the extent aforesaid The amount of such debenture stock shall be in addition to the amount which the Company may raise by borrowing under the powers of this Act and the restrictions contained in the section

of this Act the marginal note whereof is "Power to borrow" shall not apply with respect to any debenture stock to be created and issued under this section nor shall any certificate of a justice of the peace under the fortieth section of the Companies Clauses Consolidation Act 1845 be required in relation to such creation or issue. A.D. 1911.

(3) Any mortgage or debenture stock under this section substituted for any five per cent. debenture stock shall be held in the same rights on the same trusts and subject to the same powers provisions charges and liabilities as those in on or subject to which the five per cent. debenture stock was held immediately before the substitution and so as to give effect to and not to revoke any deed will or other instrument or testamentary or other disposition disposing of or affecting the five per cent. debenture stock and every such deed will instrument or disposition shall take effect with reference to the whole or a proportionate part as the case may be of the substituted mortgage or debenture stock.

18. If any money is payable to any stockholder shareholder mortgagee or debenture stock holder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge. Receipt in case of persons not sui juris.

19. Section 37 (If profits exceed the amount limited excess may be invested and form an insurance fund) of the Act of 1898 is hereby repealed. Repeal of section 37 of Act of 1898.

20.--(1) The directors of the Company may if they think fit in any half year appropriate out of the revenue of the Company as part of the expenditure on revenue account any sum not exceeding an amount equal to one half per cent. of the paid-up capital of the Company including premiums to a fund to be called "the Special Purposes Fund." Power to create a special purposes fund.

(2) The special purposes fund shall be applicable only to meet such charges as a chartered accountant or an incorporated accountant being the auditor of the Company or appointed for the purpose by the Board of Trade shall approve as being—

(A) expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented; or

(B) expenses incurred in the replacement or removal of plant or works other than expenses requisite for maintenance and renewal of plant and works.

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(3) The maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount equal to one-tenth part of the paid-up capital of the Company including premiums.

(4) The moneys forming the special purposes fund or any portion thereof may be invested in securities in which trustees are authorised by law to invest or may be applied for the general purposes of the Company to which capital is properly applicable or may be used partly in the one way or partly in the other.

(5) Resort may from time to time be had to the Special Purposes Fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

(6) The money or securities standing to the credit of the insurance fund of the Company at the passing of this Act shall be credited to the special purposes fund.

Amendment
of section 39
of Act of
1898.

21. Section 39 of the Act of 1898 shall be read and have effect as if the words "authorised rate" had been inserted therein instead of the words "standard rate" where such words lastly occur in such section.

General
meetings.

22.—(1) Section 24 of the Act of 1867 is hereby repealed.

(2) The future general meetings of the shareholders and stockholders of the Company shall be held in the months of February and August or March and September in each year or at such other stated period as shall be appointed for that purpose by an order of a general meeting. And all meetings whether ordinary or extraordinary shall be held at some place to be appointed by the directors of the Company. And the quorum of every meeting of the Company shall be six shareholders or stockholders holding in the aggregate two hundred shares or two thousand pounds stock in the undertaking.

Closing of
register of
transfers of
debenture
stock.

23. The directors of the Company may close the register of transfers of debenture stock for a period not exceeding fourteen days previous to each date at which the interest thereon shall be payable. And they may fix a day for closing the same of which seven days' notice shall be given by advertisement in a newspaper published or circulating within the limits of supply. And any transfer of debenture stock made during the time

when the transfer books are so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently to the payment of any such interest. A.D. 1911.

24.—(1) Notwithstanding anything contained in the Companies Clauses Consolidation Act 1845 no person shall be elected an auditor of the Company who shall not be a professional accountant And it shall not be necessary for any person who shall be an auditor of the Company to hold shares or stock in the Company. Auditors.

(2) Subject as aforesaid the provisions of the Companies Clauses Consolidation Act 1845 relating to auditors shall apply to auditors of the Company.

25. In addition to the powers which the directors may exercise under the Companies Clauses Acts 1845 to 1889 they may determine the remuneration of the secretary of the Company. Power of directors to determine remuneration of secretary.

26.—(1) The Company may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to private consumers within the limits of supply through any other kind of meter or by any other method of supply. Charge for gas supplied by means of prepayment meters.

(2) The Company shall not charge for the hire of any prepayment meter and fittings to be used therewith any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so charged shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of the meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet if such fittings include a cooking stove :

The said charge shall also include the providing letting fixing repairing and maintenance of the meter and fittings and the cost of collection and other costs incurred by the Company in connexion with such meter and fittings.

(3) The maximum charge for the hire of a prepayment meter without fittings shall be at the rate of ten per centum per annum on the cost of the meter.

(4) For the purpose of this section the expression “prepayment meter” means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

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Supply of
gas when
consumer
has separate
supply.

27. Notwithstanding anything contained in the Gasworks Clauses Act 1871 or any other Act a person shall not be entitled to demand from the Company a supply or the continuance of a supply of gas for premises having a separate supply either of gas or electricity (that is to say a supply from an installation other than that of the Company) unless he shall have previously agreed to pay the Company such minimum annual sum as will give to them a reasonable return on the capital expenditure and standing charges incurred by them to meet the possible maximum demand for those premises and the minimum annual sum to be so paid shall be determined in default of agreement by arbitration in manner provided by the Arbitration Act 1889.

As to construction and
placing of
pipes &c.
between
mains and
meters.

28. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

- (1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer either in the first instance or on the occasion of any renewal between the Company's mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises:
- (2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time:
- (3) The specification shall be published twice in some newspaper circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Company:
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connexion with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building:
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until

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after the expiration of twenty-four hours from the service of such notice on the Company Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with:

- (6) Any person to whom the Company refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

29.—(1) Subject as herein-after provided any gas meters fittings gas stoves cooking and other apparatus tubes pipes stoves ranges engines machines articles or things (in this section called "fittings") let by the Company on hire under the provisions of section 20 of the Order of 1883 shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or proceedings in bankruptcy against the persons in whose possession the same may be.

Fittings not to be subject to distress and though fixed to premises to remain property of Company.

(2) Subject as herein-after provided all fittings let by the Company on hire as aforesaid shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and removable by the Company Provided that nothing in this subsection shall affect the amount of the assessment for rating of any premises upon which any such fittings are or shall be fixed.

(3) The Company shall only be entitled to the privileges and exemptions conferred by this section in respect of such fittings as shall have upon them respectively a distinguishing metal

A.D. 1911. — plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

Period of error in defective meters.

30. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges are recoverable by the Company. Section 52 of the Act of 1898 is hereby repealed.

Power to enter premises and remove fittings.

31. The power to enter premises and to remove pipes meters fittings or apparatus conferred upon the Company by section 22 of the Gasworks Clauses Act 1871 shall extend to all cases in which any person entering into occupation of any premises previously supplied with gas by the Company shall not require to take a supply of gas from the Company or to hire from the Company all or any of the pipes meters fittings or apparatus belonging to the Company and let by them on hire to any former occupier of such premises.

Power to require use of anti-fluctuators for gas engines.

32. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator together with an effective non-return valve and shall at all times at his own expense keep such anti-fluctuator and valve in proper repair and in default of his so using or keeping such anti-fluctuator and valve in proper repair the Company may cease to supply gas to such consumer. The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator and valve at all reasonable times such taking off removing testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator and valve be found in proper order but otherwise at the expense of such consumer.

Power to lay down pipes for ancillary purposes.

33. The Company may lay down repair take up alter relay and renew mains pipes and culverts within the limits of supply for the purpose of procuring conducting or disposing of

any oil or other materials used by them in or resulting from the manufacture of gas or any residual products thereof or for any purpose connected with their business and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are applicable for the purposes of this section shall extend and apply *mutatis mutandis* to and for the purposes thereof. A.D. 1911.

34. Notwithstanding anything contained in the recited Acts or this Act or the Acts incorporated therewith the provisions of sections 11 12 24 to 34 36 and 37 of the Gasworks Clauses Act 1871 shall not apply to the Company in respect of gas supplied by them for utilisation for power (herein-after called "power gas") and the provisions of the recited Acts with respect to the illuminating power pressure or purity of gas supplied by the Company and the testing thereof or with respect to the price of gas shall not be applicable in respect of power gas supplied by the Company or to the Company in respect of power gas and the Company may charge in respect of power gas supplied to the occupier of any premises within the limits of supply such sums as may be agreed between the Company and such occupier as aforesaid. Provisions as to charges &c. and conditions in respect of gas supplied for power.

35.—(1) It shall not be lawful for the Company at any time to supply power gas which does not possess a distinctive and readily perceptible smell. Conditions as to quality of power gas supplied.

(2) For every contravention of this section the Company shall be liable on summary conviction to a fine not exceeding fifty pounds.

(3) It shall be the duty of the inspectors of factories and the inspectors of mines to enforce the provisions of this section within their district so far as respects factories workshops and mines inspected by them respectively and such inspectors shall for this purpose have all powers and authorities conferred by section 119 of the Factory and Workshop Act 1901 and by section 41 of the Coal Mines Regulation Act 1887 and section 17 of the Metalliferous Mines Regulation Act 1872 respectively:

Provided that no proceedings shall be taken against the Company by any such inspector in respect of any contravention of the provisions of this section discovered by him on any inspection of a factory workshop or mine unless he shall have

A.D. 1911. given notice in writing to the Company at their principal office of such contravention and of the nature of the contravention as soon as possible after he discovers the same.

Power gas
not to be
supplied for
illumination.

36. The Company shall not supply power gas for the purpose of illumination and no power gas supplied by the Company shall be used for that purpose.

If any person supplied by the Company with power gas shall use the same for the purposes of illumination the Company shall forthwith upon becoming aware thereof discontinue the supply.

If the Company act in contravention of the provisions of this section they shall for every such offence be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding five pounds.

Home Secre-
tary may
make regu-
lations as to
supply of
power gas.

37.—(1) The Secretary of State for the Home Department may at any time either before or after the Company shall have commenced to give a supply of power gas to consumers (after holding such inquiries as he may think fit and considering any representations made to him by the Company) make or impose in the interests of safety to persons regulations terms and conditions with respect to such supply.

(2) The Company shall not under the powers of this Act supply or continue to supply power gas otherwise than in accordance with any regulations and upon and subject to any terms and conditions which shall have been so made or imposed and shall for the time being be in force Provided that if in the opinion of the Company compliance with any such regulations terms and conditions would render the supply or continued supply of power gas by them unremunerative or impracticable it shall be lawful for the Company upon giving to all consumers of power gas supplied by them not less than three months' notice of their intention so to do to discontinue such supply and in that event the Company shall not be under any obligation to supply or to continue to supply power gas to any person.

(3) For every contravention of this section the Company shall be liable on summary conviction to a fine not exceeding fifty pounds.

(4) For the purpose of enforcing this section or for the purpose of any inquiry by the said Secretary of State there-

under inspectors of factories and inspectors of mines shall have such and the like powers and authorities as are conferred by the enactments referred to in the section of this Act the marginal note whereof is "Conditions as to quality of power gas supplied." A.D. 1911.

38. Nothing in this Act contained shall exempt the Company from the provisions of any general Act relating to the manufacture or supply of power gas passed before or after the passing of this Act or from any regulations which may be made under any such general Act. Provision as to general Acts relating to power gas.

39. No penalty shall be incurred by the Company for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was produced by any circumstance beyond the control of the Company Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company. Saving as to penalties.

40. The Company may contract with any local authority company or persons authorised to supply gas under parliamentary powers in any district adjacent to the limits of supply for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as may be agreed upon but nothing in this section shall authorise the Company to lay any mains or interfere with any street beyond the limits of supply. Company may contract with local authority &c. for supply in bulk.

41. Notwithstanding anything contained in this Act or any enactment incorporated therewith the following provisions for the protection of the county council of the administrative county of Middlesex (in this section referred to as "the county council") shall unless otherwise agreed between the Company and the county council have effect in so far as any works constructed executed or laid down by the Company in pursuance of this Act affect any main roads or bridges which the county council are bound to maintain or to repair (that is to say):— For protection of Middlesex County Council.

- (1) For the purposes of section 8 of the Gasworks Clauses Act 1847 the notice to be served on the county council shall (except in cases of emergency arising

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from defects in any of the pipes or other works) be not less than seven clear days instead of three clear days as therein provided :

- (2) The plan required by section 9 of the Gasworks Clauses Act 1847 shall be sent by the Company to the county council (except in cases of emergency as aforesaid) not less than in the case of a bridge or the approaches thereto fourteen days and in all other cases seven days before the Company proceed to break up or open any such main road or bridge and if the county council or their officer shall not within the period of fourteen days or seven days as the case may be after the plan has been delivered to the county council express their or his disapproval or signify their or his requirements in relation thereto the county council shall be deemed to have approved thereof :
- (3) The Company shall not permit any trench made by them in any such main road or bridge as aforesaid to be open for more than fifty yards in length at any place where there shall be a less space than nine feet six inches remaining available for vehicular traffic at the side of such trench or for more than one hundred yards in length where there shall be a less space than nineteen feet remaining available for such traffic :
- (4) Where any pipe conduit or other work of the Company is to be laid or constructed under the powers of this Act beneath the surface of any such main road or bridge as aforesaid the same shall if reasonably possible be laid or constructed at such a depth that not less than two feet six inches shall intervene between the surface of such road or bridge and the upper surface of any such pipe conduit or work Any difference as to the reasonable possibility of so laying or constructing any such pipe conduit or work shall be determined by arbitration :
- (5) If the Company in the execution of any works in or affecting any such main road or bridge as aforesaid shall cause any damage injury or disturbance to such road or bridge and shall neglect or refuse to make good all such damage injury or disturbance in accordance

with the provisions of the Gasworks Clauses Act 1847 then it shall be lawful for the county council after reasonable notice to the Company of the alleged neglect or refusal and of the works which they propose to execute to do all works necessary for making good all such damage injury or disturbance and the Company shall repay to the county council all costs charges and expenses which the county council shall reasonably and properly incur in carrying out such works including all reasonable expense of superintendence:

- (6) The Company shall at all times keep any mains pipes and apparatus constructed or laid down under the powers of this Act in or under any such main road or bridge as aforesaid in an effective state of repair and shall upon notice by the county council in writing so to do forthwith take all necessary steps to remedy any defects appearing in such mains pipes or apparatus. The Company shall make good to the county council all damages costs charges and expenses which may be suffered or incurred by the county council by reason of any defect in any such main pipe or apparatus of the Company. Any difference as to the amount of any such damages costs charges or expenses shall be determined by arbitration:
- (7) Any difference by this section required to be determined by arbitration shall be determined by an engineer to be appointed in default of an agreement between the parties by the President of the Institution of Civil Engineers on the application of either party and subject thereto in accordance with the provisions of the Arbitration Act 1889.

42. Notwithstanding anything in this or any other Act or in any Order contained the following provisions for the protection of the Great Eastern Railway Company (hereinafter called "the railway company") shall unless otherwise agreed in writing between the Company and the railway company be in force and have effect and be binding on the Company:—

For protection of Great Eastern Railway Company.

- (1) In laying down and in executing any works in connexion with the laying down or the repair and renewal of any mains pipes or other works which the Company

A.D. 1911.

under the powers of this Act may lay down and execute upon across over under or in any way affecting the railways lands or property now or hereafter belonging to or occupied by the railway company or the bridges approaches viaducts stations or other works or any level crossings of or repairable by the railway company the same shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the railway company and only (except in cases of emergency arising from defects in any of the pipes or other works) according to plans and sections to be previously submitted to and reasonably approved by him and in all things by and at the expense of the Company who shall also restore and make good the roads over any such bridges level crossings and approaches which the railway company is or may be liable to maintain and which may be disturbed or interfered with by or owing to any operations of the Company Provided always that if such principal engineer shall not approve or disapprove any such plans or sections so submitted to him within fourteen days after the same are delivered or shall refuse or neglect for the space of seven days after being requested so to do by the Company to superintend the work the Company may proceed with the work without the approval of the plans and sections and without the superintendence of the said engineer respectively :

- (2) All such works matters and things shall be constructed executed and done so as not to cause any injury to such railways bridges level crossings approaches viaducts stations works lands or property or interruption to the passage or conduct of the traffic over such railways or at any station thereon and if any injury or interruption shall arise from or be in any way owing to any of the acts operations matters and things aforesaid or the bursting leakage or failure of any such mains pipes or works under or near to any such bridge level crossing or other property the Company shall make compensation in respect thereof to the railway company the amount of such compensation to be determined by arbitration in the manner herein-after provided :

(3) Any dispute or difference which may arise between the railway company and the Company with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed by the Board of Trade on the application of the railway company and the Company or either of them. A.D. 1911.

43. Any mains pipes or other works which the Company may under the powers of this Act lay down or execute under or over or which may affect any railway or works of the Great Northern Railway Company shall unless otherwise agreed in writing between the Company and the Great Northern Railway Company be laid down and executed and any repairs which the Company may make to any such mains pipes or works shall (unless otherwise agreed as aforesaid) be made by the Company under the direction and superintendence and to the reasonable satisfaction of the chief engineer of the Great Northern Railway Company and (except in cases of emergency arising from defects in any of the mains pipes or other works) in accordance with plans and sections previously submitted to and reasonably approved by him and the Company shall make the Great Northern Railway Company full compensation for all damage sustained by them by reason of the laying down execution or repair of any mains pipes or other works in the exercise of the powers of this Act: For protec-
tion of Great
Northern
Railway
Company.

Provided always that if such chief engineer shall not approve or disapprove any such plans or sections so submitted to him within twenty-eight days after the same are delivered or shall refuse or neglect for the space of fourteen days (or in cases of emergency forthwith) after being requested to do so by the Company to superintend the work the Company may proceed with the work without the approval of the plans and sections and without the superintendence of the said engineer respectively.

If any difference shall arise between the Company and the Great Northern Railway Company under this section such difference shall be settled by an engineer to be agreed upon or failing agreement to be appointed by the President of the Institution of Civil Engineers at the request of either party.

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Repeal of
certain pro-
visions of
Acts of 1867
and 1898.

44. The following sections of the Act of 1867 and the Act of 1898 are hereby repealed (namely):—

Act of 1867—

Section 36 (Company may require consumers to use meters);

Section 37 (Consumer to keep his own meter in proper order);

Section 38 (Company to have access to and power to remove and examine meters);

Section 39 (Penalty for injuring gas meters);

Section 40 (Incoming tenant not liable for arrears);

Section 41 (Power to remove meter and fittings);

Section 47 (Recovery of sums by action);

Section 49 (Contents of summons or warrant);

Section 51 (Liability to gas rate not to disqualify justices):

Act of 1898—

Section 4 (Recovery of demands under fifty pounds);

Section 49 (Gas consumers to give notice to Company before removing).

Recovery of
rents &c. by
distress.

45. From and after the passing of this Act the amounts or sums of money specified or referred to in section 48 of the Act of 1867 shall cease to be recoverable in the manner in the said section provided but shall be recoverable in the like manner as sums of money specified or referred to in section 40 of the Gasworks Clauses Act 1871 are recoverable under the last-mentioned section.

Gas con-
sumers to
give notice
to Company
before re-
moving.

46. At least twenty-four hours' notice in writing shall be given to the Company by every gas consumer before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be endorsed upon every demand note for gas charges payable to the Company.

47. Proceedings for the recovery of any demand made under the authority of this Act or the recited Acts or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

A.D. 1911.
Recovery of demands.

48.—(1) In this section “the trustees” means the trustees under the copartnership rules of the Company “copartner” means any person who is a copartner under such rules “stock” means any consolidated ordinary stock of the Company “deposits” means any bonus or other sums of money left on deposit with the trustees and “nominee” means any person or persons named in a nomination made under this section.

DISPOSAL
OF STOCK
AND DE-
POSITS OF
COPARTNERS
ON DEATH.
Definitions.

(2) Subject to the provisions of this section and the regulations set forth in the Second Schedule to this Act any copartner not being under the age of sixteen years may nominate any person or persons who on the death of the copartner shall (to the extent of a total value of not exceeding one hundred pounds) be entitled to be registered as holder of any stock and to be paid any deposits standing in the name of the copartner.

Power to
dispose by
nomination.

(3) On receiving satisfactory proof of the death of a copartner who has made a nomination in force at his death the directors and the trustees if they have no notice of the claim of any creditor shall subject to the provisions of this section and the said regulations give effect to the nomination to the extent of a total value of not exceeding one hundred pounds and shall respectively in accordance with the directions of the nomination register the nominee as holder of the stock and pay to the nominee the deposits standing in the name of the copartner at his death or as the case may be the portion of the stock and deposits mentioned in the nomination Provided that if the total value of the stock and deposits standing in the name of the copartner at his death exceeds one hundred pounds the directors and the trustees shall before giving effect to the nomination to a greater extent than seventy-five pounds require the production of a duly stamped receipt for the legacy duty payable on such stock or deposits or a letter or certificate from the Commissioners of Inland Revenue stating that no such duty is payable and the Commissioners shall

Proceedings
on death of
nominator.

A.D. 1911. give such receipt letter or certificate on the payment of the duty or satisfactory proof of no duty being payable as the case may be.

Disposal in
case of
intestacy.

(4) If any copartner dies intestate without having made any nomination under this section in force at his death and the total value of the stock and deposits standing in his name does not exceed one hundred pounds then without letters of administration the directors and the trustees if they have no notice of the claim of any creditor may respectively register the stock in the names of and pay the deposits to such persons as appear to a majority of the trustees upon such evidence as they may deem satisfactory to be entitled by law to be registered as owners of the stock or to receive the deposits. Provided that if the total value of the stock and deposits of the deceased copartner exceeds ninety pounds the directors and the trustees shall before dealing with the stock or deposits under this subsection to a greater extent than seventy-five pounds obtain from the Commissioners of Inland Revenue a receipt for the legacy duty payable thereon or a letter or certificate stating that no such duty is payable.

Estate duty
payable in
certain
events.

(5) When the principal value of the estate in respect of which estate duty is payable of any copartner exceeds one hundred pounds any stock registered or sum paid under this section without probate or letters of administration shall notwithstanding such registration or payment be liable to estate duty as part of the amount on which that duty is charged.

Power to
require de-
claration of
value of
estate.

(6) The directors and the trustees shall respectively before registering any person as the holder of any stock or paying to any person any deposits standing in the name of a deceased copartner satisfy themselves that the principal value of the estate of the deceased copartner does not after deduction of debts and funeral expenses exceed one hundred pounds and in the absence of other evidence to their satisfaction shall be empowered to require a statutory declaration by such person to that effect or if such principal value exceeds one hundred pounds they shall before registering the stock in the name of or paying the deposits to any person other than the legal personal representative of the deceased copartner to an extent greater than three-fourths of the total value of such stock and deposits require production of a certificate from the Commissioners of Inland Revenue of the payment of the estate duty.

Validity of
registration

(7) Any registration of stock or payment of deposits made by the directors or the trustees under the provisions of sub-

section (4) of this section shall be valid and effectual against any demand made upon the Company the directors or the trustees by any other person but the next-of-kin or lawful representative of the deceased copartner shall have remedy for recovery of the stock so registered or deposits so paid as aforesaid against the person who has been registered as holder of the stock or received the deposits.

A.D. 1911.

and pay-
ments.

(8) For the purposes of this section the value of the stock of a deceased copartner shall be deemed to be the value of such stock as at the date of the death of the copartner and in the event of the directors and trustees being restricted under the provisions of this section from giving effect to any nomination made by a deceased copartner and in force at his death to the whole extent of the nomination they shall primarily give effect thereto to the extent to which it relates to stock.

Value of
stock and
priority of
nomination.

49. Nothing contained in this Act shall extend or operate to authorise the Company to take use enter upon or in any manner interfere with any land soil water or hereditaments or any land parcel of any manor or any manorial rights or any other rights of whatsoever description belonging to His Majesty in right of His duchy of Lancaster without the consent in writing of the Chancellor for the time being of the said duchy first had and obtained (which consent the said Chancellor is hereby authorised to give) or take away prejudice or diminish any estate right privilege power or authority vested in or enjoyed or exerciseable by His Majesty His heirs or successors in right of His said duchy.

Saving rights
of duchy of
Lancaster.

50. The Company may from time to time apply to the purposes of this Act to which capital is properly applicable any moneys they may have already raised or are authorised to raise.

Application
of funds.

51. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

Costs of Act.

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The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

GAS LANDS.

Certain lands in the parish of Enfield in the county of Middlesex in the occupation of Alfred William Archer containing eight acres and two perches or thereabouts adjoining and to the westward of the gas-works and lands of the Company which lands are bounded on the east in part by the Company's works and lands in part by cottages known as Redburn Terrace South Street Ponders End and in part by the cottage known as No. 145 South Street aforesaid on the north in part by vacant ground abutting on the south side of South Street aforesaid in part by the premises known as No. 6 Redburn Terrace aforesaid in part by South Street aforesaid in part by premises now or late the property of Thomas Redburn in part by Wesleyan Methodist School and premises in part by premises at the rear of Nos. 131 133 and 135 South Street aforesaid in part by the southernmost cottage in St. James' Place South Street aforesaid in part by No. 10 South Row South Street aforesaid and in part by premises in the rear of the Falcon Public House on the west in part by No. 143 South Street aforesaid and premises in the rear thereof in part by Falcon Road and in part by the properties numbered respectively on the Ordnance map second edition 1896 (scale $\frac{1}{25000}$) 1522 and 1523 in the parish of Enfield and on the south by the boundary between the parishes of Edmonton and Enfield.

THE SECOND SCHEDULE.

REGULATIONS AS TO DISPOSAL OF STOCK AND DEPOSITS OF COPARTNERS ON DEATH.

1. In these regulations "the Company" means the Enfield Gas Company "the directors" and "the secretary" respectively mean the directors and secretary of the Company "appointor" means any person who makes a nomination under the provisions of the section of the Enfield Gas Act 1911 the marginal note whereof is "Disposal of stock and deposits of copartners on death" and "the trustees" "stock" "deposits" and "nominee" have the same respective meanings as are given thereto in the same section.

2. A nomination shall be in writing in the form prescribed by the trustees and shall be signed by the appointor in the presence of a witness and shall be sent by post or otherwise to the secretary during the lifetime of the appointor.

3. A nomination when received by the secretary shall be registered and the receipt thereof shall be acknowledged.

4. A nomination may be revoked by the appointor by writing under his hand signed in the presence of a witness and the revocation shall be sent by post to or left at the office of the secretary during the lifetime of the appointor.

5. A revocation when received by the secretary shall be registered in like manner as in the case of a nomination and the receipt thereof shall be acknowledged.

6. The marriage of an appointor shall operate as a revocation of any nomination theretofore made by that appointor.

7. A nomination may relate to the whole of the stock and deposits standing in the name of an appointor or to part only of such stock and deposits.

8. Except where otherwise stated a nomination shall be deemed to extend to all stock and deposits to which an appointor is entitled at the time of his decease up to a total value of not exceeding one hundred pounds but an appointor may in a nomination expressly exclude any part of such stock or deposits from the operation of such nomination.

9. A nomination may be in favour of one person or of several persons and in the latter case may direct that on the death of the appointor the stock shall be registered in the name of and the deposits shall be paid to one or more of the persons named in the nomination or that the persons named in such nomination shall be registered as owners of the stock and shall take the deposits or any of them respectively in specified shares or may give directions to both effects.

10. No person who witnesses the signature of an appointor to a nomination shall take any benefit under such nomination.

11. The receipt of any nominee who has attained the age of sixteen years shall be a good discharge to the trustees for any sum paid to him notwithstanding such nominee has not attained the age of twenty-one years.

12. Where the directors have registered stock in the name of or the trustees have paid deposits to a nominee in ignorance of a marriage of the appointor subsequent to the nomination the registration shall be deemed to have been lawfully made and the receipt of the nominee shall be a valid discharge for the sum so paid.

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13. Where any nominee is at the death of the appointor an infant under the age of sixteen years and it is proved to the satisfaction of the trustees that funds are needed for the maintenance education or benefit of such infant the directors may register the stock and the trustees may pay the deposits mentioned in the nomination or any part thereof in the name of or to any person who may satisfy the trustees that he will apply any money received by him from the trustees or by the sale of or as interest on such stock for the maintenance education or benefit of such infant and the receipt of such person shall be a good discharge to the trustees for the amount so paid.

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